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DATA PROCESSING AGREEMENT

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DPA Amendment – Ashcombe Retail Group plc

Contract reference : CR-2025-022
Document type : DPA Amendment
Status : signed
Date received : 2025-09-22
Date signed : 2025-10-03
Related contracts : CR-2025-011

PARTIES

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- (1) Northgate Systems Ltd
 - (2) Ashcombe Retail Group plc
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RECITALS

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- (A) Update of the Ashcombe DPA following 2025 UK data-law changes and a sub-processor change.
 - (B) The commercial particulars are summarised below and, together with the standard terms and any negotiated amendments, form the whole agreement.

NOW IT IS AGREED as follows:

SUMMARY OF TERMS

Amendment to DPA: refreshed statutory references, updated sub-processor list, revised transfer annex.

TERMS AND CONDITIONS

1. SCOPE AND ROLES

This Data Processing Agreement forms part of, and is subject to, the underlying agreement between the parties. It applies where one party (the "Processor") processes personal data on behalf of the other (the "Controller") in connection with the services. The subject-matter, duration, nature and purpose of processing, and the

types of data and categories of data subject, are set out in the Summary of Terms and Schedule.

2. PROCESSOR OBLIGATIONS

The Processor shall process personal data only on the Controller's documented instructions, including as to international transfers, unless required to process by law (in which case it shall inform the Controller unless prohibited). The Processor shall immediately inform the Controller if, in its opinion, an instruction infringes applicable data protection law.

3. CONFIDENTIALITY OF PROCESSING

The Processor shall ensure that persons authorised to process the personal data are subject to an appropriate duty of confidentiality and are trained in their data-protection responsibilities.

4. SECURITY OF PROCESSING

The Processor shall implement appropriate technical and organisational measures under Article 32 UK GDPR to ensure a level of security appropriate to the risk, taking account of the state of the art, the costs of implementation and the nature, scope, context and purposes of processing.

5. SUB-PROCESSING

The Processor shall not engage a sub-processor without the Controller's prior specific or general written authorisation. Where general authorisation is given, the Processor shall inform the Controller of intended changes and give the Controller the objection window recorded in the Schedule of Negotiated Amendments. The Processor shall flow down equivalent data-protection obligations to each sub-processor and remains liable for their performance.

6. DATA SUBJECT RIGHTS

Taking account of the nature of the processing, the Processor shall assist the Controller by appropriate technical and organisational measures, insofar as possible, to respond to requests to exercise data subject rights under Chapter III UK GDPR.

7. PERSONAL DATA BREACH

The Processor shall notify the Controller without undue delay, and in any event within the window recorded in the Schedule of Negotiated Amendments, after becoming aware of a personal data breach, and shall provide sufficient information and assistance to enable the Controller to meet its obligations under Articles 33 and 34 UK GDPR.

8. DATA PROTECTION IMPACT ASSESSMENTS

The Processor shall provide reasonable assistance to the Controller with data

protection impact assessments and prior consultation with the Information Commissioner under Articles 35 and 36 UK GDPR.

9. INTERNATIONAL TRANSFERS

The Processor shall not transfer personal data outside the United Kingdom without an appropriate Article 46 transfer mechanism (such as the UK International Data Transfer Agreement (IDTA), the UK Addendum to the EU Standard Contractual Clauses, or another lawful mechanism) as recorded in the Schedule of Negotiated Amendments, together with any supplementary measures identified by a transfer risk assessment.

10. AUDIT AND RECORDS

The Processor shall make available to the Controller information necessary to demonstrate compliance with this DPA and allow for and contribute to audits, including inspections, subject to the frequency, notice and confidentiality limits recorded in the Schedule of Negotiated Amendments (typically no more than once annually and additionally for cause).

11. DELETION OR RETURN

On termination of the services, the Processor shall at the Controller's choice delete or return all personal data and delete existing copies, subject to the retention schedule recorded in the Schedule of Negotiated Amendments and to any retention required by law.

12. GOVERNING LAW

This DPA is governed by the law of the underlying agreement. In the event of conflict on data-protection matters, this DPA prevails.

----- GENERAL PROVISIONS -----

A. INTERPRETATION

Clause headings do not affect interpretation. References to a statute or statutory provision are to it as amended, extended or re-enacted from time to time and include subordinate legislation made under it. Words in the singular include the plural and vice versa, and "including" and "in particular" are illustrative and do not limit the words that precede them.

B. ENTIRE AGREEMENT

This agreement, together with the documents it incorporates and the Schedule of Negotiated Amendments, constitutes the entire agreement between the parties on its subject matter and supersedes all prior drafts, arrangements and understandings, whether written or oral. Each party acknowledges that it has not relied on an

y statement or representation not expressly set out in this agreement, save that nothing limits liability for fraud or fraudulent misrepresentation.

C. VARIATION AND WAIVER

No variation of this agreement is effective unless it is in writing and signed by an authorised representative of each party. No failure or delay by a party to exercise any right or remedy is a waiver of that or any other right or remedy, and no single or partial exercise prevents any further exercise.

D. ASSIGNMENT

Neither party may assign, transfer, charge, sub-contract or deal in any other manner with any of its rights or obligations under this agreement without the prior written consent of the other (such consent not to be unreasonably withheld or delayed), save that either party may assign to an affiliate or to a successor in connection with a bona fide reorganisation or sale of the relevant business.

E. SEVERANCE

If any provision of this agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable; if such modification is not possible, the relevant provision is deemed deleted. Any modification to or deletion of a provision does not affect the validity and enforceability of the rest of this agreement.

F. NOTICES

Any notice given under this agreement shall be in writing, addressed to the relevant party at its registered office or principal place of business (or such other address as notified), and delivered by hand, pre-paid first-class post or email to the address notified for that purpose. A notice is deemed received: if delivered by hand, on signature; if by post, at 9.00am on the second business day after posting; and if by email, on transmission, subject to confirmation of delivery.

G. FORCE MAJEURE

Neither party is in breach of this agreement or otherwise liable for any failure or delay in performance (other than a payment obligation) caused by an event beyond its reasonable control. The affected party shall notify the other and use reasonable endeavours to mitigate the effect. If the event continues for more than sixty (60) days, either party may terminate on written notice.

H. THIRD PARTY RIGHTS

Except as expressly stated in this agreement, a person who is not a party has

no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this agreement, and the consent of any third party is not required to vary or rescind it.

I. DISPUTE RESOLUTION AND ESCALATION

The parties shall attempt in good faith to resolve any dispute by escalation to their respective senior representatives within fourteen (14) days of written notice of the dispute. If the dispute is not resolved within a further thirty (30) days, either party may pursue its rights and remedies, without prejudice to either party's right to seek urgent injunctive relief at any time.

J. COUNTERPARTS AND ELECTRONIC SIGNATURE

This agreement may be executed in any number of counterparts, each of which when executed constitutes an original and all of which together constitute one and the same instrument. Execution by electronic signature is valid and binding.

SCHEDULE OF NEGOTIATED AMENDMENTS (TRACKED CHANGES)

This Schedule records each redline agreed against the standard form above, the counterparty position it replaced, and the policy or legislation relied on. It forms part of this agreement and prevails over the standard wording it varies.

AMENDMENT 1 [2025-09-26] - AMENDED

Clause affected: Service Levels & Remedies

(+) Negotiated amendment:

+ Statutory references refreshed for new legislation.

Governing basis: Data (Use and Access) Act 2025; UK GDPR, Art. 28

AMENDMENT 2 [2025-10-01] - AMENDED

Clause affected: Sub-Processing

(+) Negotiated amendment:

+ New analytics sub-processor added with 30-day objection window.

Governing basis: UK GDPR, Art. 28(2); POL-PRIV-001

EXECUTION

Executed by the parties on the dates set out below. This agreement may be signed in counterpart and by electronic signature.

Signed for and on behalf of Northgate Systems Ltd:

Signature: _____
Name: _____
Title: _____

Date: 2025-10-03

Signed for and on behalf of Ashcombe Retail Group plc:

Signature: _____

Name: _____

Title: _____

Date: 2025-10-03

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SIMULATED PLACEHOLDER CONTRACT – Northgate Systems Ltd corpus.

Generated from the contract register; not a real legal document.

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